

to remove the Second Cause of Action for Common Counts, and 2) alleging compliance with the required Notice of Client's Right to Fee Arbitration. This matter is set for review regarding status of amended complaint on **Monday, October 19, 2026 at 9:00 a.m. in Department 64.**

IN RE COTTRELL

CASE NUMBER: 26CV-0211177

Tentative Ruling on Petition for Change of Name: Petitioner Richard Cottrell seeks to change the name of his minor son. Proof of publication has been filed. When a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. This matter is continued to **Monday, November 16, 2026, at 8:30 a.m. in Department 64** to permit service on the mother. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the mother at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

DEBT MGMT VS. KEOMORAKOTH

CASE NUMBER: CVG21-0000801

Tentative Ruling on Claim of Exemption: Judgment Debtor Thandarr Keomorakoth claims an exemption from wage garnishment on the basis that their earnings are needed to support themselves and their family. Claimant has provided a completed Financial Statement which provides their income and monthly expenses.

Pursuant to Federal Law, 75% of disposable income is automatically exempt (i.e. the maximum that can be withheld is 25% of disposable income). 15 USC § 1673(a). Section 1672(b) of Title 15 of the United States Code defines "disposable earnings" as "that part of the earnings of any individual remaining after the deduction from those earnings of any amounts required by law to be withheld." CCP § 706.011 provides an almost identical definition. California permits the exemption of all income that a judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family. CCP § 706.051(b). Finally, it should be noted that the judgment debtor has the burden of proof. CCP § 703.580. The evidentiary support for a wage garnishment exemption is typically found in the required Financial Statement.

The Financial Statement shows that Claimant has three dependents. Their claimed expenses fall slightly below their monthly take home pay. However, the Court finds that the claimed expenses are excessive. Therefore, the Court will subtract \$200 from phone/utilities, \$100 from transportation, \$100 from laundry/cleaning, and \$200 from childcare. Under the new calculation, Claimant's monthly expenses total \$4,649 which means that they have \$651.12 in disposable income. Pursuant to statute, 25% of that may be withheld, so garnishment will be permitted in the amount of \$162.78 per month.

The Claim of Exemption is **GRANTED** and garnishment shall be limited to \$162.78 monthly. Judgment Creditor did not submit a proposed Order Determining Claim of Exemption. Judgment Creditor is directed to submit the proposed Order for execution.